

It is also unclear whether the Plaintiff is alleging multiple acts by the Defendant, other than the continuous failure to maintain a habitable residence. But even assuming the Defendant engaged in multiple acts, involving multiple breaches of duty, the primary rights at issue would remain the same.

In sum, the lawsuit in the instant matter involves the same primary rights and the same parties as the lawsuit in Case 1, all stemming from the same transaction: one relationship, that of landlord and tenant; with a single rental agreement at the core; and the same pattern of behavior, namely, failure to maintain and repair. The claims in the two lawsuits are the same and Plaintiff cannot pursue both.

The only remaining issue is whether to grant Plaintiff leave to amend. The court feels that there is little the Plaintiff can do to amend the Complaint without a further invocation of Res Judicata. The Plaintiff has not alluded to any other primary rights or transactions that would legitimately lead to a second and proper lawsuit. But the court defers to longstanding authority that it is to grant leave to amend with liberality.

Disposition

Defendant's Demurrer to all counts in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of this order.

Defendant to file Order.

9. 9:00 AM CASE NUMBER: L25-12293

CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE

*HEARING ON MOTION IN RE: MTN TO STRIKE PORTIONS OF PLTFS COMPLAINT

FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to Strike portions of the Plaintiff's Complaint. Plaintiff filed a timely response, and Defendant then filed a Reply.

Analysis

The Complaint alleges that Defendant breached a contract with Plaintiff in which Plaintiff suffered damages of over \$13,000, and that, as a consequence, Plaintiff is entitled to attorney's fees and other costs. Plaintiff attached a copy of the purported agreement between the parties.

In Defendant's Motion, the only references to damages appear to be those stemming from claims four through six of the third page of the Motion. Defendant claims that: any allegation of damages should be stricken because there is a lack of standing; any claim for attorney's fees should be stricken because there is no apparent contract provision providing for these fees; and that any reference to account balances should be stricken because there is no evidence that Plaintiff owns the account at issue (the court will interpret this last claim as one of Standing).

Defendant concedes that they made no attempt to meet and confer.

In a limited civil case, the only basis for a motion to strike is in the claim that the damages or relief sought are not supported by the allegations of the complaint. Code of Civil Procedure Section 92(d) and (e).

There is a meet and confer requirement. Prior to filing a motion to strike, the moving party must meet and confer with the opposition and attempt to resolve the objections to the pleading. CCP Section 435.5. This conference must occur at least five days before the date the motion is due. CCP Section 435.5(a)(2). However, it does not appear that a failure to meet and confer is a ground for granting or denying the motion. CCP Section 435.5(a)(4).

To survive a motion to strike an allegation that damages are unsupported by the allegations in a complaint, "[T]he ultimate facts showing an entitlement to such relief must be pled by a plaintiff." *Clauson v. Sup.Ct. (Pedus Services, Inc.)* (1998) 67 CA4th 1253, 1255. In ruling on the motion, a court must construe the pleadings "liberally...with a view to substantial justice." CCP Section 452. The court presumes that the allegations are true. "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." *Clauson v. Sup.Ct. (Pedus Services, Inc.)* supra, 67 CA4th at 1255.

In the instant matter, the Defendant did not attempt to meet and confer with Plaintiff. But this fact is not consequential to the ruling.

Instead, it does not appear that Defendant has shown that Plaintiff's damages are not supported by the allegations in the Complaint. While Defendant argues a lack of Standing, this is an affirmative defense, and the Defendant must allege this in the Answer. It is not an issue that must be addressed by Plaintiff in the Complaint. Thus Defendant's fourth and six claims have no merit.

Moreover, with respect to the third claim, the purported agreement, which is attached to the Complaint, does contain a provision on attorney's fees and other costs. Thus,

assuming the allegations of the Complaint are true, namely, that Defendant entered into an agreement with Plaintiff that involved a form of lending, then broke that agreement when Defendant did not repay the loan, that the contract terms called for the repayment of the loaned amount plus payment for attorney's fees and other costs, and that Plaintiff's damages are a result of Defendant's failure to repay the loaned amount, then the damages in the Complaint are supported by the allegations.

Disposition

Defendant's Motion to Strike is Denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY: PIAZZA, JOLYNN

TENTATIVE RULING:

Plaintiff filed a motion to quash service of summons. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify both parties.

11. 9:00 AM CASE NUMBER: MSL21-02132
CASE NAME: CAPITAL ONE BANK VS ISRAEL
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**
FILED BY: CAPITAL ONE BANK (USA), N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06,